

24NWCV02028 24NWCV02028

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-07-27

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Case Number: 24NWCV02028 Hearing Date: July 27, 2026 Dept: C

DAMEON FLUCKER vs PIH

HEALTH, INC., et al., Case No. 24NWCV02028

Defendant UNIVERSAL

PROTECTION SERVICE, LP dba ALLIED UNIVERSAL SECURITY SERVICES (DOE 1) applies

ex parte for an order continuing trial, currently scheduled for October 21,

2026, on the grounds that Defendant timely filed and served (electronically)

its Motion for Summary Judgment on June 30, 2026, but the earliest available

hearing date was September 24, 2026, which is less than 30 days before

trial. Notice of a motion for summary judgment shall be served at least

81 days before the hearing, and the hearing shall be conducted no more than 30

days before trial. (CCP §437c, subd. (2) and (3).) If the motion is served

electronically, the required 81-day period of notice shall be extended by two

court days. Based upon the current trial date, the last day to serve a

motion for summary judgment was June 30, 2026. Thus, Defendant provided

timely notice. A court may not refuse to hear a summary judgment motion

filed within the time limits of Code Civ. Proc. § 437c. (Cole v. Superior Court

(2022) 87 Cal.App.5th 84; Sentry Ins. Co. v. Superior Court (1989) 207

Cal.App.3d 526.) Plaintiff DAMEON FLUCKER and Defendant PIH HEALTH, INC. do not

oppose the request. The ex parte

application is GRANTED. Trial is ADVANCED from October 21, 2026 to today

and CONTINUED to October 26, 2026 at 10:00 a.m. in Dept. SE-C. A Final

Status Conference is set for October 12, 2026 at 10:00 a.m. in Dept.

SE-C. Pretrial deadlines are not extended. Moving party to give

notice.